

WELLS FARGO BANK v. MARROQUIN

23CV46516

PLAINTIFF'S MOTION TO DEEM RFAS ADMITTED

This is a collections case involving an unpaid credit card account. Before the Court is plaintiff's motion to deem admitted all nine matters contained in plaintiff's Request for Admissions served by mail on defendant on 02/22/23. According to counsel, the RFAs were mail-served at defendant's address of record, but never responded to. Counsel further avers that a follow-up reminder letter was sent, without success. A review of the file confirms counsel's use of the proper address of record.

Pursuant to CCP §2033.280(c), if a party fails to timely respond to a set of RFAs, a trial court "shall" grant a motion to deem those matters admitted "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response ... in substantial compliance with Section 2033.220." Since the responding party has up until the actual hearing on the discovery motion to moot portions thereof, a tentative ruling granting the motion remains tentative unless and until the Court determines at or after the hearing that substantially compliant responses were never served. (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778-780; *Tobin v. Oris* (1992) 3 Cal.App.4th 814, 827.) The tentative, at this time, is to GRANT the motion to deem the matters admitted (plaintiff is not seeking sanctions, so none are included).

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.